

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                        |                                               |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Santosh Prakash                 | Team:<br>Squad #08                  | CCRB Case #:<br>201600714 | <input checked="" type="checkbox"/> Force              | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 01/21/2016 7:15 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>7/21/2017   | Precinct:<br>103                                       |                                               |                                 |
| Date/Time CV Reported<br>Thu, 01/21/2016 7:58 AM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 01/27/2016 11:13 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. POM Julio Meyreles | 22000  | 940470 | NAR DIV |
| 2. DT3 Jason Levy     | 06945  | 928639 | NARCBQN |

| Officer(s)             | Allegation                                                                                       | Investigator Recommendation |
|------------------------|--------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Julio Meyreles | Abuse: Police Officer Julio Meyreles stopped § 87(2)(b)                                          | A . Substantiated           |
| B . DT3 Jason Levy     | Abuse: Detective Jason Levy stopped § 87(2)(b)                                                   | B . Substantiated           |
| C . POM Julio Meyreles | Abuse: Police Officer Julio Meyreles frisked § 87(2)(b)                                          | C . Unsubstantiated         |
| D . POM Julio Meyreles | Abuse: Police Officer Julio Meyreles searched § 87(2)(b)                                         | D . Unsubstantiated         |
| E . POM Julio Meyreles | Abuse: Police Officer Julio Meyreles searched § 87(2)(b)'s property.                             | E . Unsubstantiated         |
| F . DT3 Jason Levy     | Abuse: Detective Jason Levy searched § 87(2)(b)                                                  | F . Unsubstantiated         |
| G . POM Julio Meyreles | Force: Police Officer Julio Meyreles used physical force against § 87(2)(b)                      | G . Unsubstantiated         |
| H . DT3 Jason Levy     | Abuse: Detective Jason Levy refused to provide his name and shield number to § 87(2)(b)          | H . Substantiated           |
| I . POM Julio Meyreles | Abuse: Police Officer Julio Meyreles refused to provide his name and shield number to § 87(2)(b) | I . Substantiated           |
| J . POM Julio Meyreles | Discourtesy: Police Officer Julio Meyreles spoke discourteously to § 87(2)(b)                    | J . Unsubstantiated         |
| K . POM Julio Meyreles | Abuse: Police Officer Julio Meyreles threatened to arrest § 87(2)(b)                             | K . Unsubstantiated         |

### Case Summary

On January 21, 2016, at approximately 7:15 AM, § 87(2)(b) exited § 87(2)(b), located near the intersection of § 87(2)(b) in Queens, where he receives outpatient treatment. At the time, § 87(2)(b) was carrying a pill bottle in his pants pocket, containing § 87(2)(b) prescribed to him. At the intersection, § 87(2)(b) crossed towards a bus stop on the opposite side of § 87(2)(b), and, in doing so, saw an unmarked blue van drive slowly past him, pulling up to a nearby curb. As § 87(2)(b) reached the bus stop, two plainclothes officers, PO Julio Meyreles and Det. Jason Levy of Queens North Narcotics, exited the van and called him over (**Allegations A, B**). § 87(2)(b) complied and approached the officers, aware that the pill bottle created a bulge in his pocket. When he reached the officers, PO Meyreles pointed to § 87(2)(b)'s pocket, asked what he was carrying, and then allegedly patted the bulge (**Allegation C**). PO Meyreles then allegedly reached into § 87(2)(b)'s pocket and removed the pill bottle (**Allegation D**). PO Meyreles then asked § 87(2)(b) for identification, which he provided, allowing PO Meyreles to cross-reference the label against it. PO Meyreles then allegedly opened the bottle to look inside (**Allegation E**). As PO Meyreles was doing so, Det. Levy approached § 87(2)(b) from behind, and allegedly put his fist into § 87(2)(b)'s back pocket (**Allegation F**). § 87(2)(b) immediately placed his hand over Det. Levy's fist, which remained in his pocket, and loudly protested, at which point PO Meyreles allegedly grasped § 87(2)(b)'s left wrist and rotated his arm (**Allegation G**). Det. Levy removed his fist from § 87(2)(b)'s back pocket. § 87(2)(b) then asked both officers for their names and shield numbers, but did not receive a verbal response (**Allegations H, I**). § 87(2)(b)'s bus then arrived, and Det. Levy walked back to the blue van. PO Meyreles then returned § 87(2)(b)'s pill bottle and identification card, as § 87(2)(b) again asked him for his name and shield number. In response, PO Meyreles allegedly stated: "Go fuck yourself, you're not getting shit from us – just be happy you're not getting arrested." (**Allegation J, K**). § 87(2)(b) was not summonsed or arrested as a result of the incident, which was not captured on video. A UF-250 was prepared by Det. Levy (See: Board Review 01 – § 87(2)(b)'s Statement; Board Review 08 – UF-250).

### Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. Notice of claim results are pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(b)]

### Civilian and Officer CCRB Histories

- § 87(2)(b) has filed two prior CCRB complaints, #§ 87(2)(b)

- PO Meyreles has been a member of service for 10 years, and has been a subject in two prior CCRB cases, in five allegations, one of which was substantiated (#201100754, for a Question, with penalty of Instructions). § 87(2)(g)
- Det. Levy has been a member of service for 14 years, and has been a subject in 6 prior CCRB cases, in 8 allegations, none of which were substantiated. § 87(2)(g)

### Findings and Recommendations

**Allegation A: Abuse – PO Julio Meyreles stopped** § 87(2)(b)

**Allegation B: Abuse – Det. Jason Levy stopped** § 87(2)(b)

**Allegation H: Abuse – PO Julio Meyreles refused to provide his name and shield number to**

§ 87(2)(b)

**Allegation I: Abuse – Det. Jason Levy refused to provide his name and shield number to** § 87(2)(b)

§ 87(2)(b)

It is undisputed that Det. Levy and PO Meyreles questioned § 87(2)(b) about his pill bottle at § 87(2)(b), an area under enforcement by Queens North Narcotics as a drug-prone location (See: Board Review 04 and 05 – PO Meyreles’ and Det. Levy’s Statements; Board Review 09 – Tactical Plan). § 87(2)(g)

§ 87(2)(b) stated that after leaving the clinic, he walked east on § 87(2)(b), and crossed south at the intersection at § 87(2)(b), to the bus stop on the opposite side of § 87(2)(b). § 87(2)(b) was carrying a prescribed bottle of § 87(2)(b) pills in his pants pocket, the large size of which created a bulge. While § 87(2)(b) was going to join several fellow patients at the bus stop, he did not interact with anyone while walking there, and did not remove the pill bottle at any time. As § 87(2)(b) crossed § 87(2)(b), he observed a blue cargo van drive slowly by him, and saw its two occupants look directly at him. As § 87(2)(b) was about to reach the bus stop, the van suddenly sped up, and parked curb-side approximately 15 feet east of the bus stop. PO Meyreles and Det. Levy then exited the van, and PO Meyreles pointed at § 87(2)(b) gesturing at him to come to them. Though § 87(2)(b) did not initially know who the men were, one of the patients told him they were police. § 87(2)(b) then walked over to the officers. When he reached them, PO Meyreles asked § 87(2)(b) if he was coming from the § 87(2)(b) clinic. When § 87(2)(b) answered yes, PO Meyreles noticed the bulge and asked what he was carrying. PO Meyreles then patted the bulge, and, without further questions, placed his hand inside § 87(2)(b)’s pocket, removing the pill bottle (analyzed separately as Allegations C and D). PO Meyreles then inspected the label on the bottle, and asked for § 87(2)(b)’s identification card, which he provided. PO Meyreles then opened the pill bottle (analyzed separately as Allegation E). Soon thereafter, § 87(2)(b) was searched again by Det. Levy, at which time PO Meyreles grabbed his wrist and briefly rotated his arm (analyzed separately as Allegations F, G). When § 87(2)(b) asked the officers for their names and

shield numbers, after this physical interaction, neither officer responded verbally. Det. Levy was the first to return to the van. PO Meyreles tossed § 87(2)(b)'s pill bottle and identification card back at him, and also returned to the van, telling to him to catch his bus. § 87(2)(b) correctly noted the license plate number of the van, which he provided in his CCRB complaint (See Board Review 01 – § 87(2)(b)'s Statement).

In the UF-250 he prepared after the incident, Det. Levy noted that § 87(2)(b) not referenced by name, was stopped for a duration of three minutes, after an observation period of two minutes, for possessing unknown pill bottle (See Board Review – UF-250). In their memo books, both officers referred to the incident in abbreviated shorthand, noting the following terms: “criminal sale of controlled substance”; “male/white/§ 87(2)(b) identification “refused”; “pill bottle”; U.S. currency; “investigation negative.” (See Board Review 06 and 07 – PO Meyreles’ and Det. Levy’s Memo Books)

§ 87(2)(g)  
Driving a blue cargo van, PO Meyreles and Det. Levy were working enforcement in the vicinity of § 87(2)(b), an area they knew as a drug-prone location. While slowly driving eastbound on § 87(2)(b), and scanning the area for possible hand-to-hand transactions, the officers observed § 87(2)(b) from a distance crossing § 87(2)(b) to the bus stop. The officers noticed nothing notable about § 87(2)(b) at this distance. As the van neared the bus stop, from a distance of two car-lengths, PO Meyreles and Det. Levy observed § 87(2)(b) conversing with another male, who was standing immediately next to him. § 87(2)(b) was holding a pill bottle in his hand, and the other male was holding cash. Both officers believed that § 87(2)(b) and the male were about to transact. However, the pill bottle was closed, and there were no other furtive movements or gestures by either party, such as hand-to-hand contact or concealment efforts. PO Meyreles (the operator) stated the van was moving under thirty miles per hour at the time of the observation, while Det. Levy believed it was moving at five miles an hour. Neither officer could articulate any further suspicions about § 87(2)(b) and the bottle, in relation to the male and his cash. Det. Levy acknowledged voluntarily that the cash could have been held for other reasons, such as boarding fare for the bus, and stated that § 87(2)(b) was not presenting or displaying the pill bottle to the male. As the officers made the observation, they continued to drive by, and parked several car lengths away from the bus stop. PO Meyreles and Det. Levy then exited the van and gestured at § 87(2)(b) beckoning him to come to them. § 87(2)(b) noticed the officers gesturing at him and approached them willingly. While PO Meyreles stated that the officers remained at the rear of the van, Det. Levy stated that they walked closer to the bus stop (See Board Review 04 and 05 – PO Meyreles’ and Det. Levy’s Statements).

In his CCRB statement, PO Meyreles stated that he identified himself as a police officer to § 87(2)(b) who immediately replied “I’m not doing anything wrong, I’ve got my medication on me.” PO Meyreles informed § 87(2)(b) “I’m not stopping you – we’re just conducting an investigation in regards to drug sales.” § 87(2)(b) then removed a pill bottle from his front pants pockets and handed it to PO Meyreles, stating that he had “nothing to hide.” While unable to explain the term “refused” in his memo book entry, PO Meyreles stated that § 87(2)(b) had provided his name, and that he never asked § 87(2)(b) for his identification. Upon

receiving and inspecting the pill bottle, which contained § 87(2)(b) prescribed to § 87(2)(b) PO Meyreles determined that he was the legitimate owner, based on the good condition of the appropriately labeled bottle. Additionally, because § 87(2)(b) had been so forthcoming, PO Meyreles' suspicion regarding the narcotics sale had been dispelled. However, as PO Meyreles was inspecting the bottle, § 87(2)(b) suddenly became upset and aggravated, directing his anger at Det. Levy, with whom he might have been conversing. § 87(2)(b) loudly exclaimed "why are you stopping me, I'm going to make a complaint against you." Det. Levy quickly withdrew from the interaction, allowing PO Meyreles to de-escalate and return the bottle to § 87(2)(b). PO Meyreles told § 87(2)(b) that his bus was arriving, at which point § 87(2)(b) walked back to the bus stop, continuing to yell that he was going to file a complaint (See Board Review 04 – PO Meyreles' Statement). PO Meyreles stated that § 87(2)(b) never asked either him or Det. Levy for their name and shield number.

§ 87(2)(g). As the officers determined that the pill bottle was legitimate, Det. Levy began casually speaking with § 87(2)(b) telling him that due to the § 87(2)(b) clinic in the area, the police had received community complaints about people selling pills. § 87(2)(e), § 87(2)(f)

§ 87(2)(b). As soon as Det. Levy mentioned the clinic, § 87(2)(b)'s demeanor changed entirely – he suddenly became upset, telling Det. Levy that the officers had no reason to stop him, and that he would file a complaint against them. Det. Levy ultimately withdrew from § 87(2)(b) and returned to the van, allowing PO Meyreles to de-escalate the situation. As § 87(2)(b) was yelling about filing a complaint, he stated that he would report the van's license plate number. However, Det. Levy did not hear § 87(2)(b) request him or PO Meyreles for his name or shield number (See Board Review 05 – Det. Levy's Statement).

The CCRB obtained a phone statement from § 87(2)(b) § 87(2)(b) and § 87(2)(b) both friends of § 87(2)(b) § 87(2)(b) who represented that she observed the incident from inside the clinic's lobby, across the street, § 87(2)(g) (See Board Review 02 – § 87(2)(b)'s Phone Statement). § 87(2)(b) stated that he was already waiting at the bus stop when § 87(2)(b) crossed the street towards the bus stop. § 87(2)(b) corroborated that the blue van passed § 87(2)(b) as he was crossing the street, and that he was beckoned by two males to come to the van, which pulled up approximately 40 feet from the bus stop. There, the males spoke to and searched § 87(2)(b) for approximately fifteen minutes. § 87(2)(g)

§ 87(2)(b) (See Board Review 03 – § 87(2)(b)'s Phone Statement).

"Whenever an individual is physically or constructively detained by virtue of a significant interruption of his liberty of movement ...that individual has been seized within the meaning of the Fourth Amendment. This is true whether a person submits to the authority of the badge or whether he succumbs to force." (See Board Review 10 – People v. Cantor, 36 N.Y.2d 106 (1975)) Under People v. De Bour, officers may exercise their common-law right to inquire, by approaching and gaining explanatory information from a civilian, when "there is a founded suspicion that criminal activity is afoot." This inquiry, however, cannot restrict a civilian's

freedom of movement. To forcibly stop and detain an individual, officers must have a “reasonable suspicion” that the individual “has committed, is committing, or is about to commit a felony or misdemeanor.” (See Board Review 11 - People v. De Bour, 40 N.Y.2d 210, 223 (1976)). In a drug-prone location, “tell-tale signs of drug activity” can generate reasonable suspicion when there is an observed pattern of behavior – “furtive transfers” of money or glassine envelopes, steering of potential buyers, concealment of unidentified objects, or flight (See Board Review 12 – People v. King, 200 A.D.2d 487 (1994)). However, innocuous behavior in a drug-prone location, on its own, cannot generate reasonable suspicion (See Board Review 11 – People v. De Bour). Lastly, according to Patrol Guide Procedure 203-09, officers are required to “courteously and clearly” identify themselves to anyone who requests their name, rank, shield or command (See Board Review 13 – P.G. 203-09).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, H, and I** be closed as **Substantiated**.

**Allegation C: Abuse - PO Julio Meyreles frisked** § 87(2)(b)

**Allegation D: Abuse - PO Julio Meyreles searched** § 87(2)(b)

**Allegation E: Abuse - PO Julio Meyreles searched** § 87(2)(b) **s property.**

**Allegation F: Abuse - Det. Jason Levy searched** § 87(2)(b)

**Allegation G: Force - PO Julio Meyreles used physical force against** § 87(2)(b)

**Allegation J: Discourtesy - PO Julio Meyreles spoke discourteously to** § 87(2)(b)

**Allegation K: Threat of Arrest -PO Julio Meyreles threatened to arrest** § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that when he walked over to the officers, the following transpired. PO Meyreles patted the bulge around the bottle, and, without further questions, placed his hand inside his pocket, and removed the pill bottle. PO Meyreles then inspected the label on the bottle, and asked for § 87(2)(b)'s identification card, which he provided. PO Meyreles then opened the pill bottle, and inspected the pills inside. § 87(2)(b) acknowledged that he became vocal at this time, loudly challenging the officers' actions. As PO Meyreles was inspecting the bottle, Det. Levy approached § 87(2)(b) from behind and placed his fist inside his back pocket. § 87(2)(b) became even more upset, and placed his hand over Det. Levy's fist, which remained

in his pocket. At this time, PO Meyreles grabbed his wrist and briefly rotated his arm, telling him that they just wanted to talk. Det. Levy then removed his hand from § 87(2)(b)'s back pocket, and PO Meyreles released his wrist. At this time, § 87(2)(b) still upset, asked the officers for their names and shield numbers. The officers did not respond verbally, and proceeded to return to the van. Det. Levy left the scene first. PO Meyreles tossed § 87(2)(b)'s pill bottle and identification back to him, and told him to catch his bus, which was now arriving at the bus stop. When § 87(2)(b) again asked PO Meyreles for his name and shield number, he stated: "go fuck yourself, you're not getting shit from us – just be happy you're not getting arrested." (See Board Review 01 – § 87(2)(b)'s Statement).

PO Meyreles and Det. Levy jointly both denied all of the above-referenced allegations. Both officers stated that § 87(2)(b) voluntarily handed his pill bottle to PO Meyreles, and that the bottle was never opened for inspection. Both officers stated that they never made any physical contact with § 87(2)(b). Both officers stated that no profanity was used against § 87(2)(b) and that he was never threatened with arrest (See Board Review 04 and 05 – PO Meyreles' and Det. Levy's Statements).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

it is recommended that **Allegations C, D, E, F, G, J, and K be closed as Unsubstantiated.**

Squad: 8

|               |                 |       |       |
|---------------|-----------------|-------|-------|
| Investigator: | _____           | _____ | _____ |
|               | Signature       | Print | Date  |
| Squad Leader: | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |
| Reviewer:     | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |

